

Smt. Meenu Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 September 2016 · Writ-C No. 47425 of 2013 · **Writ disposed; representation to MD, KESCO for speaking order**

HEADNOTE

New connection refused under Clause 4.1 of the U.P. Electricity Supply Code, 2005 for arrears of other occupants of the same building. An interlocutory Division Bench observed, *prima facie*, that Clause 4.1 applies only where default is of the premises applied for, not other tenants of different portions. On final hearing the Court did not decide that question and disposed of the writ with liberty to represent to the Managing Director, KESCO, who was to pass a reasoned speaking order on whether the arrears attached to the same premises and whether refusal was justified.

FACTUAL SUMMARY

Smt. Meenu Singh applied for a new electricity connection. Kanpur Electricity Supply Company refused it on 26 July 2013, citing dues of three other consumers — Hajari Lal Verma, R.K. Agrawal and Pradeep Kumar Verma — in the same building. She claimed she occupied a different portion as a separate tenant and had no concern with those arrears. The licensee invoked Clause 4.1 of the U.P. Electricity Supply Code, 2005. A 2013 Division Bench had directed the respondents either to grant the connection ignoring those arrears or to show cause.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.1

refusal of new connection for others' arrears

HOLDING

An interlocutory Division Bench held, *prima facie*, that Clause 4.1 permits refusal of a fresh connection only where there is default in respect of the premises applied for, and is not attracted merely because other tenants occupying different portions of the same building have arrears. On final hearing another Division Bench did not decide that question, holding that whether the arrears related to the same premises and whether the licensee was legally justified in refusing the connection were issues of fact for the Managing Director of Kanpur Electricity Supply Company to examine on a representation; the writ was disposed of with directions for a reasoned speaking order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 4.1 JUSTIFIED REFUSAL OF THE PETITIONER'S CONNECTION BECAUSE OF ARREARS OF OTHER OCCUPANTS OF THE SAME BUILDING, AND WHETHER THOSE ARREARS ATTACHED TO THE SAME PREMISES

Left to the Managing Director, KESCO on a representation ¶ 1